

Risk Placement Services, Inc. - Buffalo
530 Preston Ave, Ste 205
Meriden, CT 06450
Phone: 716-874-1644
Fax: 716-874-4920

Dec 28, 2022

Attn: Glenmara Group Corp
rob@insuranceleadership.com

Insured: Copperfield Enterprises PC
Policy #: SP 2553389E
Carrier: Mount Vernon Fire Insurance Company
Coverage Type: Professional Liability
Coverage Term: 12/23/2022 to 12/23/2023

Thank you for placing the attached policy with RPS. While we have reviewed the document against our quote/binder, please now check the policy, and then review the final coverage provided with the insured, keeping in mind that it may not be as broad as their original application / request or previous coverage. If you discover errors, please contact us immediately, and our Account Executive will work with you to make adjustments (which require insurer acceptance of endorsements that may be needed).

Also included is a combined document of certain advisory notices (RPS159). While this is not a part of the policy, you will find that it provides helpful reminders for both the insured and your staff such as Certificates, Cancellations, Minimum Earned, etc, so you and the insured are aware of how we handle certain issues.

Again, thank You for your business, and please let us know if there is any further insurance we could provide to this insured, similar style accounts, or any placement where you may need our help. RPS prides itself in having many markets and most every line of business specialty in one of our offices – please give us a chance to write something more for you!

RPS Acct Exec: Andy Coric
Contacts: 716-332-9444 Andy_Coric@rpsins.com
Team Member: Megan Howes
Contacts: 716-874-1644 Megan_Howes@rpsins.com

RPS Specialty Market Policy Notices for the Policy Holder and Retail Producer

This form is NOT a part of the policy and does NOT amend policy wording, but is designed to be delivered when the policy is provided to the Policy Holder. When using "you" or "your" the form is addressing the Policy Holder; when using "Producer" it refers to the Retail Producing Entity and/or their production person; RPS is used for Risk Placement Services, Inc.

Assignment: This Policy or Certificate may not be assigned to another entity without the written consent of the Insurer. The policy wording should be reviewed carefully for this provision before any assignment attempt is made.

Audits: If your insurance policy includes general liability, product liability and/or completed operations liability, your policy is subject to an audit on a Minimum and Deposit basis. Liability premiums are often calculated using estimated exposures for a future period of time, for example gross annual sales, payroll and subcontractor costs. At the end of your policy period, the company may audit the actual exposures for your policy period. If the exposures are higher than estimated, additional premium will be due. If the exposures are lower than estimated, and the premium already paid is a Minimum and Deposit premium then no premium adjustment will be made, and no return premium will be issued. The Producer should review any Audit Condition from the policy with you. The Producer is responsible for collecting any audit premiums due within 20 days of the billing, unless otherwise noted.

Binding Coverage: Coverage can only be bound after a written request is received and acknowledged by RPS.

Cancellation: The policy has specific cancellation provisions that should be reviewed, and may be subject to special endorsements based on the State regulations. Flat cancellations are not allowed. In order to cancel you need to make written request in advance of the requested date. The policy also contains provisions that establish minimum earned premiums, minimum and deposit premiums or fully earned premiums. Cancellation for non-payment of premium, including failure to pay outside financing, is generally considered to be at the request of the Insured and therefore subject to financial penalties as described in the policy. If a Notice of Cancellation is sent for non-payment, there may be a Service Fee (not a premium) required to effect a rescission of the Notice. The amount of the fee will typically be shown on the Notice, and must be paid by the party requesting the rescission. The policy may not continue if the Service Fee is not paid.

Certificates of Insurance: You may request Certificates of Insurance from the Producer that placed your insurance policy. Such Certificates cannot contain wording contrary to the Policy Coverage as provided. Additional Insureds, often requested with Certificates of Insurance, generally require an Additional Premium, and can only be added after the Insurer knows of the insurable interest and accepts the entity as being added to the policy. Producers can access the RPS website to obtain many Certificates or make special coverage change requests via endorsement as needed to satisfy certain Certificate Holders, keeping in mind such additional coverages may require additional premium charges.

Claims Reporting: Report all claims as soon as possible. The policy will define what constitutes a claim. The policy contains specific address, phone, or website information as to where and how to report a claim. Most Insurers maintain 24/7 service of such numbers. Your Producer may also assist you with filing a claim, and they have access to the **RPS website <https://my.rpsins.com/claimsfnol>** and/or **RPS claim reporting toll free number 1-844-777-8323** to do so, however, you should review the claim reporting provision of the policy. If your policy is a "claims-made" policy, it is essential to understand what constitutes a claim from the language in the policy, and also know that all claims must be reported to the insurer as soon as possible. Both the policy and your broker can instruct you how and where to submit a claim. If a claim is reported after the time period specified in the policy, the insurer may deny coverage. Do not offer to compromise or settle any claim or demand without the insurer's prior agreement, or you will risk losing coverage.

Coverage: This policy may not be as broad in scope as the policy it replaces nor as the coverage requested. This policy was issued to reflect the coverage as quoted by RPS to your Producer. Your Producer should review the entire contract of insurance with you.

Endorsements: Additional coverage, changes or revisions are subject to acceptance of the Insurer and must be endorsed to the policy. The Producer has no authority to endorse or change the policy, but should submit in writing the requested changes to RPS who will work with the Insurer to effect endorsement's acceptability to the Insurer. Coverage is not in force until confirmed by RPS.

Fees: Unless otherwise noted, all Fees are fully earned at the time of placement of this insurance and are not subject to pro-rata return if the policy is cancelled.

Financing: Any premium financing is a contractual relationship between the Premium Finance Company (PFC) and the Borrower. The Insurer, Agents, nor Brokers are parties to the Finance Agreement, and policy wording will not be amended to any contractual provisions therein. All such contracts must be set up showing the Insurer's Name c/o Risk Placement Services, Inc., using the RPS branch address where the policy was placed. Once financed, it is the duty of the Producer to inform the PFC of any changes to the contract, additional or return premiums, and cancellation of the policy.

Forms Signed & Returned: The policy may have been delivered with forms that require the signature of the Named Insured. Such forms should be signed and returned to the Producer immediately, so they can in turn provide them to RPS, who will post them to the Insurer files.

Inspections: To keep coverage in force, an inspection may be required, and provisions for this are in the policy. Producer should review with the Policy Holder the need to arrange site appointments with inspectors, who may be vendors.

Minimum Earned Premium: This quotation/policy may include a Minimum Earned Premium provision, expressed as a percentage and/or dollar amount. This means that if the insurance policy is cancelled by you for any reason, the company will retain no less than the Minimum Earned Premium.

Example: The policy premium is \$1,000 and the Minimum Earned Premium is 25%. The policy is an annual policy and is cancelled after 2 days of being in force. The company would retain at least 25% of the premium ($\$1,000 \times 25\% = \250 and return no more than \$750.

Producer Not Agent: The Producer is a representative of the Policy Holder / Named Insured, and as such does not act as an Agent of the Insurer nor of RPS.

Transportation Policies: Report all newly hired drivers as soon as possible. Report all newly acquired vehicles prior to putting them in service and/or on the road.



RESOURCES TO HELP YOUR BUSINESS GROW!

As a policyholder through USLI or Devon Park Specialty, you have access to many free and discounted services through the Business Resource Center that will assist you in operating, growing and protecting your business. Consider the following services and associated cost savings when deciding where to place your insurance!

HUMAN RESOURCES



- » Free human resources consultation hotline to be used for personnel issues, including harassment and discrimination, the Family and Medical Leave Act, disability, wage and hours regulations and more
- » Online library with information, forms and articles pertaining to human resources
- » Resources for recruiting and training as well as termination and administration

PRE-EMPLOYMENT AND TENANT SCREENINGS



- » Discounted background checks, including multi-court criminal database searches, county criminal searches and more (first background check is free)
- » Best practices for performing a background check
- » Discounted tenant and drug screenings and motor vehicle reports (MVRs)

PAYROLL AND TAXES



- » Discounted payroll processing and tax services tailored for either a small or large business

CYBER RISK



- » Materials about securing personal and payment card information
- » Complimentary access to tools and resources that will help you understand your exposure to a data breach and the importance of a response plan

MARKETING



- » Suggested free and paid services, including email campaigns, photo editing, file management and more, for web marketing for your business
- » Suggested free and paid services for social media platforms, development, management and more
- » Discounted promotional items, giveaways and signage

SAFETY



- » Free on-site safety and occupational health consultation for your business
- » Free personal credit report
- » Disaster and emergency preparedness resources
- » Discounted alcohol and food server safety training for your staff and servers
- » Discounted CPR and first aid training
- » Youth resources for concussion training, waivers of liability, recognizing the signs and symptoms of child abuse, and more



Try our cost-savings calculator to see how much you could save!



24/7 CLAIM REPORTING

In our continuing effort to provide you with excellent claim service, you may now report a claim and get claim assistance 24 hours a day/7 days a week.

**For claim reporting, call toll free 1-888-875-5231 or visit
USLI.COM and select the “report a claim” option.**

For emergency claims requiring immediate assistance, please use the toll free option. Your call will be referred to a claims professional who will respond within an hour of your call with direction and assistance.

Thank you for placing your trust in our company. We pledge to work hard every day to earn and maintain that trust.



USLI.COM
888-523-5545



Privacy Notice At Collection

We may need to collect certain personal information to provide you with our services and products. For information on how we store, use and protect personal information, please see our Privacy Policy accessible on our website, <https://www.usli.com/privacy-policy/>.

Will You Be Prepared When a Privacy Breach Occurs?



Every year, thousands of breaches are reported, exposing millions of people's personal information. The eRiskHub® portal, powered by NetDiligence®, is an effective way to combat privacy breaches and other types of cyber losses.

With your USLI policy, you will receive instructions on how to access and begin using the eRiskHub® portal, a benefit that is valued in excess of \$1,200 a year!

eRiskHub® is the one-stop shop you need to become educated about and prepared for a privacy breach. This free service is available to USLI policyholders.

Using proprietary tools anchored in proven risk management principals, NetDiligence® provides a full range of enterprise-level information security, e-risk insurability and regulatory compliance assessment and testing services. NetDiligence® supports and is endorsed by some of the world's largest network liability insurance underwriters.

How to start using this free offering:

- ▶ Go to eriskhub.com/usli
- ▶ Click "Register Now" to set up a free account
- ▶ Create your own username and password; your access code is **08451**

Key Features of the eRiskHub® Portal

-  **Data Breach Calculators** – Learn how to estimate the cost of a breach, notification costs and business interruption
-  **Learning Center** – Best practices articles, white papers and webinars from leading technical and legal experts. Highlighted topics include PCI compliance and social engineering
-  **Security Training** – Watch videos for best practices in security and privacy awareness or download a training guide
-  **Risk Manager Tools** – Assist you in managing your cyber risk, including a self-assessment, a sample website privacy policy and a tool for HIPAA compliance
-  **Ransomware Resources** – A directory to quickly find external resources with expertise in pre- and post-breach disciplines
-  **Consultation** – Breach Coach, HIPAA Coach and Security Coach available to assist you

SP 2553389D

Renewal of Number

*** RENEWAL CERTIFICATE ***

Direct Bill Policy

POLICY DECLARATIONS

Mount Vernon Fire Insurance Company

1190 Devon Park Drive, Wayne, Pennsylvania 19087

A Member Company of United States Liability Insurance Group

No. SP 2553389E

NAMED INSURED AND ADDRESS:

Copperfield Enterprises PC

PO BOX 606

GOSHEN, NY 10924

POLICY PERIOD: (MO. DAY YR.) From: 12/23/2022 To: 12/23/2023

12:01 A.M. STANDARD TIME AT YOUR
MAILING ADDRESS SHOWN ABOVE

BUSINESS DESCRIPTION: Tax Preparer/Bookkeeper

**IN CONSIDERATION OF THE RENEWAL PREMIUM STATED BELOW, EXPIRING POLICY NUMBER SP 2553389D IS RENEWED
FOR THE POLICY PERIOD STATED ABOVE. PLEASE ATTACH THIS RENEWAL CERTIFICATE TO YOUR EXPIRING POLICY.
THIS POLICY CONSISTS OF THE FOLLOWING COVERAGE PARTS FOR WHICH A PREMIUM IS INDICATED.**

	PREMIUM
Specified Professions Professional Liability Errors And Omissions Coverage Part	\$7,219.00

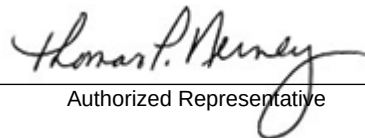
TOTAL:	\$7,219.00
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Coverage Form(s) and Endorsement(s) made a part of this policy at time of issue

See Endorsement EOD (1/95)

Agent: **RPS BUFFALO (5697)**
Mail Stop: 072101 MER: Meriden
Po Box 2819
Clinton, IA 52733
Broker: **Patriotic Insurance Group**

Issued: **12/27/2022 11:42 AM**

By: 
Authorized Representative

UPC (08-07)

THESE DECLARATIONS TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE PART DECLARATIONS,
COVERAGE PART COVERAGE FORM(S) AND FORMS AND ENDORSEMENTS, IF ANY, ISSUED TO FORM A PART THEREOF,
COMPLETE THE ABOVE NUMBERED POLICY.

EXTENSION OF DECLARATIONS

Policy No. SP 2553389E

Effective Date: 12/23/2022

12:01 AM STANDARD TIME AT YOUR MAILING ADDRESS

FORMS AND ENDORSEMENTS

The following forms apply to the Specified Professions Professional Liability Errors And Omissions coverage part

<i>Endt#</i>	<i>Revised</i>	<i>Description of Endorsements</i>
JACKET NY MTV	12/19	Policy Jacket - Mount Vernon
PROF-001	06/01	Absolute Pollution Exclusion - Professional
SP	07/09	Specified Professions Professional Liability Coverage Form
SP 210	07/09	Retroactive Date Endorsement
SP 211	07/09	Professional Services Exclusion Endorsement
SP 213	07/09	Computer Consultants Endorsement
SP 267	05/15	Payroll Processing Exclusion
SP 268	07/09	Named Insured Endorsement
SP 270	07/09	Amendment Of Professional Services Endorsement
* SP 283 NY	03/22	Pro Security Plus Endorsement

Endorsements marked with an asterisk (*) have been added to this policy or have a new edition date and are attached with this certificate.

**SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY ERRORS & OMISSIONS COVERAGE PART
DECLARATIONS**

PLEASE READ YOUR POLICY CAREFULLY.

THIS IS A CLAIMS MADE POLICY COVERAGE FORM AND UNLESS OTHERWISE PROVIDED HEREIN, THE COVERAGE OF THIS FORM IS LIMITED TO LIABILITY FOR CLAIMS FIRST MADE DURING THE POLICY PERIOD, OR THE EXTENSION PERIOD, IF APPLICABLE. DEFENSE COSTS SHALL BE APPLIED AGAINST THE DEDUCTIBLE.

No. SP 2553389E

Effective Date: 12/23/2022

12:01 AM STANDARD TIME

ITEM I. NAMED INSURED AND PRINCIPAL ADDRESS

**Copperfield Enterprises PC
PO BOX 606
GOSHEN, NY 10924**

ITEM II. POLICY PERIOD: (MM/DD/YYYY) From: 12/23/2022 To: 12/23/2023

Specified Professions Professional Liability

ITEM III. LIMITS OF LIABILITY	\$1,000,000	EACH CLAIM
	\$1,000,000	ANNUAL AGGREGATE
ITEM IV. DEDUCTIBLE:	\$1,000	EACH CLAIM
ITEM V. PREMIUM:	\$7,219	
ITEM VI. RETROACTIVE DATE:	12/23/2015	

ITEM VII. Coverage Form(s)/Part(s) and Endorsement(s) made a part of this policy at time of issue:
See Endorsement EOD (01/95)

ITEM VIII. Solely in the performance of Professional Services as a(n) **Tax Preparer/Bookkeeper for others for a fee.**

THESE DECLARATIONS ARE PART OF THE POLICY DECLARATIONS CONTAINING THE NAME OF THE INSURED AND THE POLICY PERIOD.

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**UNITED STATES LIABILITY INSURANCE GROUP
WAYNE, PENNSYLVANIA**

This endorsement modifies insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

RETROACTIVE DATE ENDORSEMENT

Section II. FULL PRIOR ACTS COVERAGE PROVISION, is deleted in its entirety and replaced with the following:

In consideration of the premium paid, it is agreed that the **Company** shall not be liable to make any payment for **Loss** or **Claim Expenses** in connection with any **Claim** made against any **Insured** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving a **Wrongful Act** committed, or alleged to have been committed prior to **12/23/2015**.

Coverage shall also not apply to any **Claim** based upon or arising out of any **Wrongful Act** or circumstances likely to give rise to a **Claim** of which any **Insured** had knowledge, or otherwise had basis to reasonably anticipate might result in a **Claim**, prior to the inception of this Policy (including, but not limited to, any prior **Claim** or possible **Claim** or circumstance referenced in the **Application**.)

All other terms and conditions of this Policy remain unchanged. This endorsement is a part of the **Insured's** Policy and takes effect on the effective date of the **Insured's** Policy, unless another effective date is shown.

**UNITED STATES LIABILITY INSURANCE GROUP
WAYNE, PENNSYLVANIA**

This endorsement modifies insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

PROFESSIONAL SERVICES EXCLUSION ENDORSEMENT

In consideration of the premium, paid it is agreed that the **Company** shall not be liable to make any payment for **Loss** or **Claim Expenses** in connection with any **Claim** made against any **Insured** based upon, arising out of, directly resulting from, in consequence of, or in any way involving the rendering or failure to render services as a(n):

Auditing

All other terms and conditions of this policy remain unchanged. This endorsement is a part of the **Insured's** Policy and takes effect on the effective date of the **Insured's** policy unless another effective date is shown.

**UNITED STATES LIABILITY INSURANCE GROUP
WAYNE, PENNSYLVANIA**

This endorsement modifies insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

NAMED INSURED ENDORSEMENT

It is hereby agreed that the following entity and any partner, director, officer or employee thereof while acting within the scope of their duties as such are added as **Insureds** as respects **Claims** first made against them for **Wrongful Acts** occurring on or after **1/21/2015**.

Name of entity: Profenna & DeBellis CPAs PC

All other terms and conditions of this Policy remain unchanged. This endorsement is a part of the **Insured's** Policy and takes effect on the effective date of the **Insured's** Policy, unless another effective date is shown.

This endorsement modifies insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY

PRO SECURITY+ ENDORSEMENT

Unless otherwise stated herein, the terms, conditions, exclusions and other limitations set forth in this endorsement are solely applicable to coverage afforded by this endorsement. This endorsement is part of and subject to the provisions of the Policy to which it is attached.

I. SCHEDULE OF ADDITIONAL COVERAGES AND LIMITS

The following is a summary of Coverages and Limits of Liability provided by this endorsement.

COVERAGE	LIMIT OF LIABILITY
A. Transmission of Malicious Code Liability Coverage	Included in the EACH CLAIM and IN THE AGGREGATE policy limits shown on the Policy Declarations
B. Unauthorized Access Liability Coverage	Included in the EACH CLAIM and IN THE AGGREGATE policy limits shown on the Policy Declarations
C. Professional Reputation Restoration Expense Coverage	\$50,000 EACH CLAIM \$50,000 IN THE AGGREGATE
D. Reporting Provision for Retired, Disabled, or legal representatives of Deceased Sole Proprietors or a Sole Stockholder of Professional Corporations when acting in their capacity as such.	Included in the EACH CLAIM and IN THE AGGREGATE policy limits shown on the Policy Declarations
E. Pro-Bono Services Liability Coverage	Included in the EACH CLAIM and IN THE AGGREGATE policy limits shown on the Policy Declarations

II. COVERAGES:

Words shown in **bold** shall have the meaning provided in section III. DEFINITIONS of this endorsement or as provided in the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM, SECTION III. DEFINITIONS, as applicable. Where applicable, other terms used in this endorsement shall have the same meaning as defined in the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM.

A. Transmission of Malicious Code Liability Coverage

It is agreed that Section I. INSURING AGREEMENTS of the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM is amended by the addition of the following:

The **Company** will pay on behalf of an **Insured**, **Loss** in excess of the Deductible not exceeding the Limit of Liability shown on the Policy Declarations for which this coverage applies that an **Insured** shall become legally obligated to pay because of **Claims** first made against an **Insured** during the **Policy Period** or if applicable, during the Extended Reporting Period, arising out of a **Wrongful Act** which results in the transmission of **Malicious Code** from any **Named Insured Computer System** to any **Client Computer System**.

B. Unauthorized Access Liability Coverage:

It is agreed that Section I. INSURING AGREEMENTS of the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM is amended by the addition of the following:

The **Company** will pay on behalf of an **Insured**, **Loss** in excess of the Deductible not exceeding the Limit of Liability shown on the Policy Declarations for which this coverage applies that an **Insured** shall become legally obligated to pay because of **Claims** first made against an **Insured** during the **Policy Period** or if applicable, during the Extended Reporting Period, arising out of a **Wrongful Act** that results in:

1. the destruction, deletion or corruption of electronic data belonging to a **Third Party** which is stored in the **Named Insured Computer System**; or
2. the unauthorized taking, use or disclosure from the **Named Insured Computer System** of information about or belonging to a **Third Party**; or
3. a **Denial of Service Attack** against an Internet site(s) or computer(s) of a **Third Party**, but only if caused by the failure of an **Insured** to prevent unauthorized access to or use of a **Named Insured Computer System**.

It is hereby agreed that Section IV. EXCLUSIONS of the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM, exclusion M. is deleted in its entirety for the purposes of coverage under this endorsement only.

C. Professional Reputation Restoration Expense Coverage

It is agreed that Section I. INSURING AGREEMENTS of the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM is amended by the addition of the following for the purposes of coverage under this endorsement only:

The **Company** will pay on behalf of the **Named Insured** for **Reputation Restoration Expenses** resulting from the actual publication in a newspaper, magazine or other general circulation print publication or on the radio, television or other electronic broadcast of a covered **Claim** under this policy. Payment of expenses shall be up to the "Professional Reputation Restoration Expense" Limit of Liability stated in the SCHEDULE OF ADDITIONAL COVERAGES AND LIMITS above

The **Company** will pay on behalf of the **Named Insured** for **Reputation Restoration Expenses** only if all of the following conditions are met:

1. The **Named Insured** has (a) first reported the Claim to the Company, (b) obtained the Company's consent to payment of **Reputation Restoration Expenses** which consent will not be unreasonably withheld and (c) uses a reputation restoration service provider designated by the Company; and
 2. The **Reputation Restoration Expenses** are directly related to a **Claim** covered under this Policy; and
 3. **Reputation Restoration Expenses** relate to services rendered within ninety (90) days following the first publication of a covered **Claim**; and
 4. **Reputation Restoration Expenses** are incurred for services provided, no more than twelve (12) months following the reporting of a covered **Claim**.
- D. Reporting Provision for Retired, Disabled, or the Legal Representatives of Deceased Sole Proprietors or Sole Stockholders of Professional Corporations when acting in their capacity as such.

It is agreed that Section XI, NOTICE/CLAIM REPORTING PROVISIONS of the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM is amended by the addition of the following for the purposes of coverage under this endorsement only:

If this Policy is canceled by the **Named Insured** or the **Named Insured** ceases to provide **Professional Services** due to death or the divestiture or dissolution of the **Named Insured's** sole proprietorship or a professional corporation in which the **Named Insured** is the sole stockholder, and such divestiture or dissolution is for the reasons set forth below, the **Named Insured** or the **Named Insured** legal representative as applicable, shall be provided, without additional charge, an unlimited extension of time to report any **Claim(s)** first made against the **Named Insured** after the effective date of such cancellation, death, dissolution or divestiture:

1. Retirement of the **Named Insured** from the performance of **Professional Services**; an employed person covered by the insured's claims made policy during such affiliation shall continue to be covered under such policy and extended reporting period after such affiliation has ceased for such person's covered acts. If the policyholder goes bankrupt, or if the insured does not purchase a tail at termination the claims made policy shall continue to provide extended reporting period coverage to any covered employee subject to the provisions of Section 73.3(n) of 11 NYCRR 73 (Regulation 121); or
2. Total disability which prevents the **Named Insured** from providing **Professional Services**; or
3. Death of the **Named Insured**.

However, this extension of time to report a **Claim(s)** shall only be afforded in the event that the **Wrongful Act** was committed before the effective date of cancellation, death, divestiture or dissolution and no Professional Liability policy, or policy providing essentially the same type of coverage, or extended reporting period, is in effect at the time the **Claim** is made. The extension of time to report a **Claim(s)** will terminate if the **Named Insured** resumes performance of **Professional Services** in any capacity or when the **Named Insured's** estate is closed.

The **Named Insured** or **Named Insured's** legal representative, must notify the **Company** in writing if this coverage is desired within sixty (60) days after the effective date of cancellation, death, divestiture or dissolution.

The **Company**, in its sole discretion, may require documented proof of the **Named Insured's** disability or death as a condition of providing the extended reporting period described above.

E. Pro-Bono Services Coverage:

It is agreed that Section I. INSURING AGREEMENTS of the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM is amended by the addition of the following for the purposes of coverage under this endorsement only:

The **Company** will pay on behalf of an **Insured, Loss** in excess of the Deductible not exceeding the Limit of Liability shown on the Policy Declarations for which this coverage applies that an **Insured** shall become legally obligated to pay because of **Claims** first made against an **Insured** during the **Policy Period** or if applicable, during the Extended Reporting Period, for **Wrongful Acts** or **Wrongful Acts** resulting in **Personal Injury**, arising out of **Professional Services** rendered by an **Insured** on a pro bono or gratuitous basis for charitable purposes arising solely in the conduct of the **Insured's** profession as stated in ITEM VIII. of the Policy Declarations for or on behalf of the **Named Insured** or **Subsidiary**, including such services provided electronically utilizing the Internet or a network of two or more computers.

III. LIMITS OF LIABILITY AND DEDUCTIBLE

Regardless of the number of **Insureds** under this policy or **Claim(s)** made or brought under this endorsement, the **Company's** liability is limited as follows:

For Claims arising under Section I, SCHEDULE OF ADDITIONAL COVERAGE AND LIMITS of this endorsement, the Limit of Liability specified as EACH CLAIM shall be the maximum limit of liability for **Loss** for each **Claim** under Coverage A., B., D., and E. and shall be included in the EACH CLAIM policy limits shown in the Policy Declarations

The Limit of Liability specified in Section I, SCHEDULE OF ADDITIONAL COVERAGE AND LIMITS of this endorsement as IN THE AGGREGATE shall be the maximum limit of liability for all **Claims** under this endorsement and shall be included in the IN THE AGGREGATE policy limits shown on the Policy Declarations.

The EACH CLAIM AND IN THE AGGREGATE Limit of Liability shown in Section I above for expenses provided under Coverage C. Reputation Restoration Expense, shall be in addition to the Limit of Liability specified in the Policy Declarations of the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM stated as IN THE AGGREGATE.

The DEDUCTIBLE shown on the Policy Declarations of the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM applies to all coverage under this endorsement with the exception of Coverage C. Reputation Restoration Expense.

IV. ADDITIONAL DEFINITIONS

For purposes of coverage provided under this endorsement, the following definitions shall apply.

Denial of Service Attack means intentional acts of a party other than an **Insured** that renders a **Third Party's** computer or network resources temporarily or permanently unavailable or unusable.

Malicious Code means any virus, Trojan Horse, worm or any other similar software program, code or script intentionally designed to insert itself into computer memory or onto a computer disk and spread itself from one computer to another.

Named Insured Computer System means any computer or connected input and output device, data storage device, networking equipment or back-up facility owned/leased and operated by the **Named Insured**.

Client Computer System means any computer or connected input and output device, data storage device, networking equipment or back up facility that is owned/leased and operated by any **Third Party**.

Reputation Restoration Expenses means:

1. Reasonable and necessary expenses charged by a public relations firm or other reputation restoration firm designated by the Company to mitigate the adverse impact of a **Claim** on the **Named Insured's** business reputation;
2. Expenses incurred at the recommendation of a public relations firm or other reputation restoration firm to purchase media time or to print and mail written communications targeted to the general public and/or customers to mitigate the adverse impact of a **Claim** on the **Named Insured's** business reputation resulting from a **Claim** first made during the **Policy Period**.

Third Party means any person(s) other than an **Insured** for whom an **Insured**, in their capacity as such, provides **Professional Services**.

V. ADDITIONAL EXCLUSIONS

In addition to those specified in the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM, the following additional exclusions apply to this endorsement.

The **Company** shall not be liable to make payment for any of the following:

1. Expense reimbursement resulting in any **Insured** gaining any profit, remuneration or advantage to which the **Insured** is not legally entitled.
2. Expense(s) arising from any incident(s) of which any **Insured** had notice before the inception date of this Policy; or any fact, circumstance, event, situation or incident which before the inception date of this Policy was the subject of any notice under any other similar policy of insurance or any future claims for expenses under this Policy based upon such pending or prior notice.
3. Expenses incurred by any **Subsidiary** of the **Named Insured** occurring prior to the date that such entity became a **Subsidiary** or incurred at any time that such entity is not a **Subsidiary**.
4. The portion of any expense(s) covered under Coverage C. Reputation Restoration Expense that is also covered under any other coverage in this endorsement or the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM.

VI. COVERAGE LIMITATIONS

The following sections of the SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM, do not apply to Coverage C. Reputation Restoration Expense, under this endorsement:

1. Section II. FULL PRIOR ACTS COVERAGE PROVISION.
2. Section X. EXTENDED REPORTING PERIOD.

Otherwise, the terms and conditions of SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM, shall apply where applicable to give effect to this endorsement.

Coverage provided by your Policy and any endorsements attached thereto are amended by this endorsement where applicable. All other terms and conditions of this Policy remain unchanged. This endorsement is a part of the **Named Insured's** Policy and takes effect on the effective date of the **Named Insured's** Policy unless another effective date is shown.

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